IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA
FIRST APPELLATE DISTRICT, DIVISION ONE

AMERICAN CIVIL LIBERTIES UNION OF NORTHERN CALIFORNIA, Petitioner, v. THE SUPERIOR COURT OF SOLANO COUNTY, Respondent; v. CITY OF VALLEJO, Real Party in Interest	Court of Appeal Case No. A171570

Review of Order of October 9, 2024, Solano County Superior Court
Case No. FCS059257
(Hon. Stephen Gizzi)

[PROPOSED] AMICUS CURIAE BRIEF OF INFORMED CALIFORNIA FOUNDATION, INC. (D/B/A OPEN VALLEJO) IN SUPPORT OF PETITIONER AMERICAN CIVIL LIBERTIES UNION OF NORTHERN CALIFORNIA

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INTRODUCTION AND SUMMARY OF ARGUMENT

Open Vallejo is an independent, nonpartisan, nonprofit newsroom focused on providing investigative and explanatory public interest reporting in Vallejo, California. As discussed in Open Vallejo's previous amicus letter to the Court, which is attached to this brief as Exhibit A, Open Vallejo first broke the story of the badge-bending ritual that led the City of Vallejo to commission the secret report by Robert Giordano (the "Giordano Report") that is the subject of the American Civil Liberties Union of Northern California's ("ACLU") petition. But government officials have denied Open Vallejo's requests under the California Public Records Act ("CPRA") for the Giordano Report and related investigative materials and refused to release any portion of the Giordano Report to the public despite the importance of the report and public outcry about the failure to release it.[1] The decision below prevents newsrooms like Open Vallejo from reporting critical information regarding public accountability and police use of force to their communities.

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[1] (Gase, Confidential Memorandum on Badge-Bending Report Still Withheld from Public, (Vallejo Times Herald, May 19, 2022), at https://www.timesheraldonline.com/2022/05/19/confidential-memorandum-on-badge-bending-report-still-withheld-from-public/.); Keys, Activists Demand Police Accountability During Vallejo Council Meeting (Solano NewsNet, July 13, 2022), at https://solanonews.substack.com/p/activists-demand-police-accountability; St. Clair, Protestors Disrupt Meeting as Vallejo Council Declines to Vote on Police Station Proposal, (Local News Matters, Mar. 10, 2022), at https://localnewsmatters.org/2022/03/10/protesters-disrupt-meeting-as-vallejo-council-declines-to-vote-on-police-station-proposal/).)

As detailed in Open Vallejo's November 21, 2024 amicus letter, the Giordano Report and investigative materials are critical to public reporting on police shootings in Vallejo. Open Vallejo directs the Court to that letter for a full explanation as to the history and importance of the public release of the Giordano Report and related materials. Open Vallejo submits this amicus brief for the additional purpose of showing that the history and purpose of SB 1421, The Right to Know Act, demonstrate why disclosure of the report is required.

For the reasons set forth below, Open Vallejo urges this Court to grant the petition for writ of mandate filed by the ACLU and order the release of the Giordano Report and the related investigative materials.

ARGUMENT

The State of California has long been committed to fostering transparency in government through public access to records. Under the California Constitution, the "people have the right of access to information concerning the conduct of the people's business, and, therefore, the meetings of public bodies and the writings of public officials and agencies shall be open to public scrutiny." Cal. Const., art. I, § 3, subd. (b)(1). The CPRA, enacted in 1968, requires government entities to make records available to the public unless the records are subject to a specific exemption. To ensure that access remains the default, the CPRA places the burden on the agency to demonstrate that a record is "exempt under express provisions" of the CPRA or that under the

facts of the particular case, the public interest of not disclosing "clearly outweighs" the public interest of disclosure. (Gov. Code, § 7922.000.)

For more than 40 years, Penal Code sections 832.7 and 832.8 functioned as one of those narrow exceptions that effectively shielded certain peace officer personnel records from public scrutiny. Referred to as the "Pitchess statutes," these penal code provisions were enacted in response to the Supreme Court's decision in *Pitchess v. Superior Court* (1974) 11 Cal.3d 531, which held that a peace officer's personnel file was discoverable upon an adequate showing by a party to litigation. Pitchess had cascading effects: several law enforcement agencies destroyed records, the California Legislature passed laws requiring law enforcement agencies to maintain records for five years, and law enforcement agencies pushed for, and achieved, confidentiality measures like Penal Code sections 832.7 and 832.8. (Sen. Com. on Pub. Safety, Analysis of Sen. Bill 1421 (2017 – 2018 Reg. Sess.).) As a result, the Pitchess statutes required a showing of "good cause" for a court to conduct an in camera inspection of peace officer personnel records, after which the information deemed relevant could be released to the requesting party. ([*Ibid.* (citing *City of Santa Cruz v. Municipal Court* (1989) 49 Cal. 3d 74, 81–83).)

Before 2006, courts interpreted Penal Code section 832.7 to prevent access to complaints about police officers held by the officer's "employing agency," but left other records open to the public, such as administrative appeals to outside bodies and

records from jurisdictions with independent civilian review boards. (Sen. Com. on Pub. Safety, Analysis of Sen. Bill 1421 (2017 – 2018 Reg. Sess.)) These limited exceptions provided the public with some transparency after officer-involved shootings and other scandals, including the Rampart scandal.[2] However, in 2006, the California Supreme Court reinterpreted Penal Code section 832.7 in *Copley Press, Inc. v. Superior Court* (2006) 39 Cal.4th 1272 to apply much more broadly to all personnel records, plunging all police personnel records into total darkness. (Sen. Com. on Pub. Safety, Analysis of Sen. Bill 1421 (2017 – 2018 Reg. Sess.).)

After the *Copley Press* decision, California became "one of the most secretive states in the nation in terms of openness when it comes to officer misconduct and uses of force." (Sen. Com. on Pub. Safety, Analysis of Sen. Bill 1421 (2017 – 2018 Reg. Sess.).) State Senator Nancy Skinner introduced SB 1421 to remedy that

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[2] In the late 1990s, police officers in the Rampart Division of the LAPD framed innocent individuals to gain convictions and innocent individuals pleaded guilty to, and were convicted of, crimes they did not commit. (Chemerinsky, The Rampart Scandal and the Criminal Justice System in Los Angeles County (2000) 57 Guild Practitioner 121–133, at https://scholarship.law.duke.edu/cgi/viewcontent.cgi?article=2161&context=faculty_scholarship.) The LAPD's Board of Inquiry investigated the officers and published a report titled "Rampart Area Corruption Incident." (*Id.* at 121.) In addition, the President of the Los Angeles Police Protective League, the official LAPD police union, asked Erwin Chemerinsky, a pre-eminent constitutional scholar and then-professor at USC Gould School of Law, to prepare an independent analysis of the report, which was also released to the public. (*Ibid.*)

problem. SB 1421 amended the Pitchess statutes to make four types of records available to the public, of which two are potentially implicated here depending on the contents of the report: (1) records "relating to the report, investigation, or findings of ... [a]n incident involving the discharge of a firearm at a person by a peace officer" and (2) records "relating to an incident in which a sustained finding was made by any law enforcement agency or oversight agency involving dishonesty by a peace officer ... directly relating to the reporting of, or investigation of misconduct by, another peace officer or custodial officer." (Pen. Code, § 832.7, subd. (b)(1)(A)(i), (b)(1)(C).)

The purpose of SB 1421, Senator Skinner explained, was "to make sure that good officers and the public have the information they need to address and prevent abuses and to weed out the bad actors. SB 1421 will help identify and prevent unjustified use of force, make officer misconduct an even rarer occurrence, and build trust in law enforcement."[3] Moreover, Senator Skinner noted that SB 1421 is consistent with the goals of enhancing police-community relations as set out in the President's Task Force on 21st Century Policing, Action Item 1.5.1: "In order to achieve external legitimacy, law enforcement agencies should involve the community in the process of developing and evaluating policies and procedures." (Sen. Com.

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[3] (Sen. Com. on Pub. Safety, Analysis of Sen. Bill 1421 (2017 – 2018 Reg. Sess.); Assem. Com. on Pub. Safety, Analysis of Sen. Bill 1421 (2017 – 2018 Reg. Sess.) as amended June 19, 2018.; Assem. Floor Analysis, 3d Reading analysis of Sen. Bill 1421 (2017 – 2018 Reg. Sess.) as amended Aug. 23, 2018..)

on Pub. Safety, Analysis of Sen. Bill 1421 (2017 – 2018 Reg. Sess.).)

Since its passage, Open Vallejo and other newsrooms have relied on SB 1421—enacted as amendments to Penal Code sections 832.7 and 832.8—to unearth previously secret documents and deliver critical news stories to their communities. In 2019, the nonprofit news organization Voice of San Diego worked with dozens of other California news outlets to pursue copies of newly unsealed records; the coalition was ultimately able to gather more than 5,000 audio, visual, and physical files.[4] Similarly, between March of 2019 and July of 2023, Open Vallejo filed 28 requests for public records under SB 1421 and received 14,700 pages of records and 3,300 minutes of video and audio files from the City of Vallejo.[5]

But, as this case demonstrates, and as Open Vallejo has reported, agencies and courts have not always applied SB 1421 properly. For example, the City of Vallejo has withheld records requested under SB 1421 related to the killing by Vallejo police of 17-year-old Jared Huey on the basis that Mr. Huey was a minor, an exception that is nowhere in SB 1421, and two courts have

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[4] (Marx, Getting Police Records Is Still a Slog, One Year Into New Transparency Law (Voice of San Diego, Dec. 30, 2019) at https://voiceofsandiego.org/2019/12/30/getting-police-records-is-still-a-slog-one-year-into-new-transparency-law/.)

[5] (Du Sault, State Senator Says Juvenile Records Laws Shouldn't Shield Police (Open Vallejo, July 11, 2023) at https://openvallejo.org/2023/07/11/state-senator-says-juvenile-confidentiality-laws-shouldnt-shield-police/.)

endorsed that stance.[6] As Open Vallejo has reported, Senator Skinner has stated that while the law enforcement agencies could have redacted the records, SB 1421 does not contain an exemption for records when the victim or witness is a minor, and that "such an exemption would violate the intent of SB 1421 and SB 16, which were enacted to ensure that our communities have public access to records related to any law officer's misconduct."[7] Indeed, as David Loy, the legal director of the First Amendment Coalition told Open Vallejo, the "public interest is even more compelling when the police are killing children. ... They should be required to disclose the full story."[8] In addition, the City of Vallejo changed its records retention policy from 25 years to 5 years just three weeks before SB 1421 went into effect, resulting in the destruction of crucial records.[9]

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[6] (*Ibid*; Du Sault, 'Twisted to Conceal:' How Laws Meant to Protect Children Help Police Evade Scrutiny (Open Vallejo, June 28, 2023), at https://openvallejo.org/2023/06/28/twisted-to-conceal-how-laws-meant-to-protect-children-help-police-evade-scrutiny/.)

[7] (Du Sault, State Senator Says Juvenile Records Laws Shouldn't Shield Police (Open Vallejo, July 11, 2023) at https://openvallejo.org/2023/07/11/state-senator-says-juvenile-confidentiality-laws-shouldnt-shield-police/.)

[8] (Du Sault, 'Twisted to Conceal:' How Laws Meant to Protect Children Help Police Evade Scrutiny (Open Vallejo, June 28, 2023), at https://openvallejo.org/2023/06/28/twisted-to-conceal-how-laws-meant-to-protect-children-help-police-evade-scrutiny/.)

[9] (Ex. A, Application at 4 & fns. 4 & 5; Du Sault and King, Senior Officials Ordered Destruction of Vallejo Police Shooting Evidence (Open Vallejo, Feb. 5, 2023), at https://openvallejo.org/2023/02/05/vallejo-destroyed-evidence-of-police-killings/.)

Here, the history and purpose of SB 1421 directly support disclosure of the Giordano Report. The Legislature recognized that a primary purpose of disclosing police personnel records is to ensure that "good officers and the public have the information they need to address and prevent abuses and to weed out the bad actors." (Sen. Com. on Pub. Safety, Analysis of Sen. Bill 1421 (2017 – 2018 Reg. Sess.), italics added.) The Giordano Report was commissioned as an investigation into such abuses. (Ex. A, Amicus Letter at 5–6.) It is therefore exactly the type of record meant to be released under SB 1421.

Another stated purpose of SB 1421 is to disclose personnel records in order to "build trust in law enforcement" and, as Senator Skinner noted, the President's Task Force on 21st Century Policing recognized that "to achieve external legitimacy, law enforcement agencies should involve the community in the process of developing and evaluating policies and procedures." (Sen. Com. on Pub. Safety, Analysis of Sen. Bill 1421 (2017 – 2018 Reg. Sess.).) When the investigation was announced, then-Vallejo Mayor Bob Sampayan worried that badge bending was yet "another black eye—another issue that's going to make our community distrusting." (Ex. A, Amicus Letter at 5 & fn. 32.) Indeed, the Vallejo community, including previous Mayor Robert McConnell, has overwhelmingly demanded the release of the Giordano Report in order to pursue accountability and reform. (Ex. A, Amicus Letter at 5–6; St. Clair, Protestors Disrupt Meeting as Vallejo Council Declines to Vote on Police Station Proposal, (Local News Matters, Mar. 10, 2022).) Keeping the

Giordano Report secret flies in the face of the intended purpose of SB 1421 to allow the community to participate in holding its institutions accountable.

Moreover, as noted during in the Senate Committee on Public Safety's Analysis of SB 1421, the secrecy with which law enforcement investigatory and disciplinary records are treated stands in stark contrast to those of other public employees and even other professionals like doctors, lawyers, and school officials. (Sen. Com. on Pub. Safety, Analysis of Sen. Bill 1421 (2017 – 2018 Reg. Sess.).) In other cases, the Committee observed that courts have repeatedly found strong public policy reasons to disclose the disciplinary records of these types of individuals, reasoning that the public has a right to know how decision-making bodies investigate and resolve accusations of misconduct. (Sen. Com. on Pub. Safety, Analysis of Sen. Bill 1421 (2017 – 2018 Reg. Sess.).) Similarly, the Santa Clara County District Attorney's Office wrote in support of the passage of SB 1421 that it had moved away from using secret grand juries to prosecute officer-involved shootings because it found that "presenting [its] findings publicly [could] assure the public [it took] any official use of force seriously." (Assem. Com. on Pub. Safety, Analysis of Sen. Bill 1421 (2017 – 2018 Reg. Sess.) as amended June 19, 2018.) It went on to note that it had received "letters of thanks from police officers who are grateful that their name has been cleared. It is a fair system. It is not 'anti-police.'" (Assem. Com. on Pub. Safety, Analysis of Sen. Bill 1421 (2017 – 2018 Reg. Sess.) as amended June 19, 2018.)

The same analysis applies here. The Vallejo community is entitled under SB 1421 to understand how badge-bending and the workplace culture of the notably violent (and often deadly) Vallejo Police Department was investigated. As noted in Open Vallejo's previous amicus letter, the release of the report is particularly salient because questions have arisen about Robert Giordano's ability to assess the allegations of violence and badge-bending fairly. (Ex. A, Amicus Letter at 5–6.) Keeping the Giordano Report secret contravenes the purpose of SB 1421, which changed the law to require unfettered access to crucial materials of public importance such as the Giordano Report.

CONCLUSION

The Giordano Report is a critical part of informing the public and holding public institutions accountable, two core principles underlying the promulgation of SB 1421. They are also core purposes of Open Vallejo's reporting mission. For these and all the reasons stated, Open Vallejo respectfully asks the Court of Appeal to grant the relief requested by Petitioner in American Civil Liberties Union of Northern California v. The Superior Court of Solano County.

Dated: February 25, 2025

COVINGTON & BURLING LLP
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CERTIFICATE OF WORD COUNT

Under Rule 8.204, subdivision (c)(1), of the California Rules of Court, I certify that the attached [*PROPOSED*] *AMICUS CURIAE BRIEF OF INFORMED CALIFORNIA FOUNDATION, INC. (D/B/A OPEN VALLEJO) IN SUPPORT OF PETITIONER AMERICAN CIVIL LIBERTIES UNION OF NORTHERN CALIFORNIA* is 1½-spaced, typed in a proportionally spaced, 13-point font, and the brief contains 2,442 words of text, including footnotes, as counted by the word-count feature of the word-processing program used to prepare the brief.

Dated: February 25, 2025

COVINGTON & BURLING LLP
s/Rani Gupta
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Counsel for Amicus Curiae Open Vallejo

PROOF OF SERVICE

Case Name: *American Civil Liberties Union of Northern California v. The Superior Court of Solano County*
Court of Appeal Case No.: A171570
Superior Court Case No.: FCS059257

I, Ellen Chiulos, am employed in San Francisco, California. I am over the age of eighteen (18) years and am not a party to the within action. My business address is 415 Mission Street, Suite 5400, San Francisco, California 94105.

On February 25, 2025, I served a copy of the foregoing document described as: [PROPOSED] AMICUS CURIAE BRIEF OF INFORMED CALIFORNIA FOUNDATION, INC. (D/B/A OPEN VALLEJO) IN SUPPORT OF PETITIONER AMERICAN CIVIL LIBERTIES UNION OF NORTHERN CALIFORNIA, on the following parties, as follows:

> Emi Young (SBN 311238), eyoung@aclunc.org; Avram Frey (SBN 347885), afrey@aclunc.org; ACLU Foundation of Northern California, 39 Drumm Street, San Francisco, CA 94111. Counsel for Petitioner ACLU of Northern California
> Served via TrueFiling.
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> Served via TrueFiling.
>
> Solano County Superior Court, Old Solano Courthouse, To: Hon. Stephen Gizzi, Dept. 3, 580 Texas St, Fairfield, CA 94533. Respondent
> Served via U.S. Mail.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on February 25, 2025, in San Francisco, California.

Ellen Chiulos
Declarant